

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 19-021
Amendment to Title 5, Chapter 1, Article C
of the Chickasaw Nation Code
(General Provisions)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Title 5 of the Chickasaw Nation Code provides rules and procedures for the Courts of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature desires to establish a court fee schedule and rules and procedures pertaining to the same.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves of the following Amendment to Title 5, Chapter 1, Article C, of the Chickasaw Nation Code. All other Sections of Title 5, Chapter 1, Article C are to remain the same and are not affected by this resolution.

SECTION 5-103.18

FEES.

A. Notwithstanding any other provisions of law, the court clerk of the district court, or the clerk of any other court shall charge and collect the following fees:

1. For furnishing photographic copies of photographic \$1.00
records, or of typewritten script or printed records, per page
2. Approving bond or undertaking, including certificate and seal \$1.00
3. Making copy of an instrument of record or on file, first page \$.50
Subsequent pages (each) \$.50
4. Certifying and Seal \$.50
5. Authentication of court records \$5.00
6. Issuance of Marriage License \$15.00
7. Mailing any documents \$5.00
8. Issuance of Divorce Petition \$35.00
9. Issuance of Summons \$10.00
10. Issuance of Domestic Relations Petition \$35.00
11. Copy of Chickasaw Nation Code regarding Domestic Relations .. \$40.00
12. Other applications \$30.00

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B. Number 12 above includes all post trial applications except applications for correction of court records (*nunc pro tunc*).

C. Tribal Elected Officials and agents of the tribe shall be exempt from copying and certification fees.

SECTION 5-103.19

PENALTY FOR IMPROPER CHARGES.

Any public officer who shall knowingly charge, demand or receive any fees not provided by law, or who shall charge, demand or receive any greater fees than are provided in Section 5-103.18 shall be discharged from office.

SECTION 5-103.20

FAILURE OF OFFICER TO MAKE REPORTS.

A. The District Court Clerk is required to make monthly reports to the Chickasaw Nation Supreme Court for all funds received. Any officer who neglects or refuses to make such accounts shall forfeit his office.

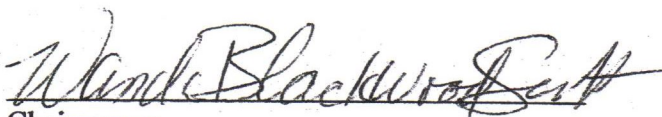
B. Each officer herein named shall cause a list of fees allowed by law to be charged by him, to be posted in his office in some conspicuous place. Every officer charging fees shall give a receipt therefor.

SECTION 5-103.21

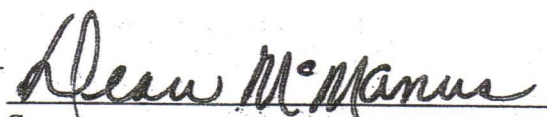
FEES NOT COLLECTED DURING TERM.

Any and all fees of any officer earned, but not collected, during his term of office, shall be collected by his successor in office and paid into the court fund, and all fees so collected shall be included in the report of the officer collecting the same. The fees collected by any officer shall be deposited in accordance with Section 5-103.17.

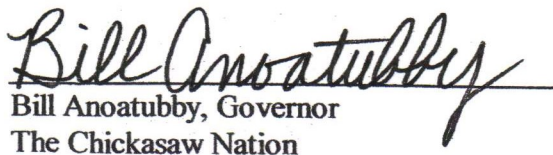
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 17, 2002, by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 17 2002

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Explanation: This resolution approves and adopts a fee schedule pertaining to documents filed in or otherwise handled by the courts of the Chickasaw Nation. This resolution also approves and adopts rules and procedures related to such fees. The Chickasaw Supreme Court participated in the preparation of this resolution.

Requested By: Wanda Blackwood Scott, Chairperson
Legislative Committee

Presented By: Wanda Blackwood Scott, Chairperson
Legislative Committee